

Contentious Chamber

Decision on the merits 55/2025 of March 20, 2025

File number: DOS-2023-03049

Subject: Complaint against the Office of Foreigners (Federal Public Service Interior – IBZ) regarding the unlawful processing of the complainant's data, including judicial data, their irregular collection, and the absence of a response to a request for access.

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Christophe Boeraeve and Yves Pouillet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, represented by Maître Agathe DE BROUWER, hereinafter referred to as "the complainant."

The defendant:

Federal Public Service Interior – General Directorate of the Office of Foreigners, whose registered office is located at Boulevard Pachéco, 44 – 1000 Brussels, registered under company number 0308.356.862, represented by Maître Elisabeth DERRIKS, hereinafter referred to as "the defendant."

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on 01/06/2024. In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/rglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>. Files initiated before 01/06/2024, as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

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I. Facts and procedure

1. On October 3, 2023, the complainant filed a complaint with the Data Protection Authority against the defendant.

2. The subject of the complaint concerns the processing of personal data – including judicial data – of the complainant.

3. The complainant, a foreign national, is detained in a prison due to criminal acts he has committed, which have resulted in a prison sentence.

4. On April 26, 2023, the Office of Foreigners adopted a decision to terminate the complainant's stay due to the aforementioned acts. This decision is partly based on ministerial circular No. 1815bis of November 27, 2017, concerning foreign detainees – unpublished. The complainant's lawyer has filed an appeal regarding this decision with the Council for the Contentious of Foreigners, which is currently pending.

5. On July 4, 2023, the complainant's lawyer made an information request to the DPA. The lawyer wishes to obtain clarifications regarding the legality of the consultations of the prison data of detainees conducted by the Office of Foreigners. In this regard, she points out that the Law of May 5, 2019, containing various provisions regarding the computerization of Justice, the modernization of the status

of consular judges, and concerning the bank of notarial acts (hereinafter "the Law of May 5, 2019") creates, in its Article 3, a computerized database called "Sidis Suite." The lawyer specifies that Article 7, § 1 of the said law grants a right of access to the data stored in "Sidis Suite" to the Office of Foreigners. However, the lawyer adds, the second paragraph of the same article states the following: "The King determines, after consulting the competent supervisory authority, the extent and modalities of this right of access and specifies by authority, body, or service for what specific purposes the data may be used." The lawyer notes that this royal decree has not yet been adopted.

Furthermore, the lawyer refers to ministerial circular No. 1815bis regulating the situation of detained foreigners, which, according to the contacts she has had with the Office of Foreigners, would constitute the basis on which the latter relies to access the prison data of detainees.

6. On August 1, 2023, the First Line Service (hereinafter "SPL") responded that it did not have information on the subject and recommended that the lawyer file a mediation request or a complaint with the DPA.

2 For more information in this regard, see points 41 to 49 of this decision.

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7.

On August 18, 2023, the complainant's lawyer sent the aforementioned findings to the attention of the Data Protection Officer (hereinafter "DPO") of the Office of Foreigners. This went unanswered.

8.

On October 3, 2023, the complainant's lawyer filed a complaint on behalf of the complainant.

9.

On February 9, 2024, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber pursuant to Article 62, § 1 of the LCA.

10.

On March 21, 2024, the Contentious Chamber decided, under Article 95, § 1, 1° and Article 98 of the LCA, that the case could be examined on the merits.

11.

On the same date, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They were also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response was set for May 3, 2024, the deadline for the complainant's reply was set for May 27, 2024, and the deadline for the defendant's rejoinder was set for June 18, 2024.

12.

On March 22, 2024, the complainant and the defendant agreed to receive all communications related to the case electronically. The complainant requested a copy of the file (Article 95, § 2, 3° LCA) in the same email, which was sent to him on April 8, 2024.

13.

On April 26, 2024, the Contentious Chamber received the defendant's response. It can be summarized as follows:

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He states that the processing of personal data he carried out in this case is in compliance with Articles 5.1.a), 6.1, and 10 of the GDPR. He relies in this regard on legislative provisions from the law of December 15, 1980, on access to territory, residence, establishment, and removal of foreigners (hereinafter "the law of December 15, 1980"), particularly on its Article 74/8, § 1, paragraph 23, which provides for an obligation to exchange information between prison authorities and the Office of Foreigners regarding foreign defendants or convicts in irregular residence. The defendant also mentions ministerial circular No. 1815bis of November 27, 2017, which specifies the aforementioned obligation to exchange information, allowing in particular the migration officer of the Office of Foreigners to access the file of the person concerned. In any case, he notes that Article 7, § 2 of the law of May 5, 2019 is not at issue since the collection of data does not occur via the Sidis Suite database;

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- He states that the processing of personal data he carried out in this case is in compliance with Articles 5.1.a), 12.1, and 14 of the GDPR. He mentions Article 62, § 1 of the law of December 15, 1980, which grants any person whose residence is to be terminated or withdrawn the opportunity to be heard and to communicate all relevant elements in writing. The defendant concludes that this results in the collection of personal data, of which the person concerned is informed;

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- He makes no remarks regarding the complaint concerning the lack of response to the complainant's access request.

14.

On May 27, 2024, the Contentious Chamber received the complainant's reply. It can be summarized as follows:

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- The defendant has disregarded Articles 5.1.a), 6.1, and 10 of the GDPR in that the processing in question is not based on any legal grounds. The complainant believes that the processing in this case cannot be based on Article 74/8, § 1, paragraph 2 of the law of December 15, 1980 as invoked by the defendant, given that this provision applies to detainees in irregular residence. However, the complainant notes that he was in regular residence. Regarding ministerial circular No. 1815bis, the complainant states that it could not constitute a lawful basis within the meaning of Articles 6.1.c) and e) since it cannot be considered a formal legal source within the meaning of Article 22 of the Constitution;

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- The defendant has disregarded Articles 5.1.a), 12.1, and 14 of the GDPR in that although he received a "Right to be Heard" form, in which he shared personal data, it did not pertain to the data that were processed in the context of the procedure preceding the adoption of the decision to withdraw the residence permit on April 26, 2023. Furthermore, the complainant notes that when he received the email communicating the "Right to be Heard" form, no information regarding the data to which the Office of Foreigners would have access, nor the extent of that access or the purposes pursued, was mentioned, so that the complainant could not determine the elements considered in the adoption of the Office of Foreigners' decision, particularly those relating to his disciplinary history;

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- The defendant has disregarded Articles 12.3 and 15.1 of the GDPR in that he did not respond to the exercise of the complainant's right of access.

15.

The defendant did not submit any rejoinder.

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16. On December 18, 2024, the parties are informed that the hearing will take place on January 23, 2025.

17. On January 23, 2025, the parties are heard by the Contentious Chamber.

18. On February 18, 2025, the minutes of the hearing are submitted to the parties.

19. The Contentious Chamber receives no remarks from the parties regarding the minutes of the hearing, other than a formal correction that has been taken into account.

II. Reasoning

II.1. Regarding the alleged breach of Articles 5.1.a), 6.1, and 10 of the GDPR

II.1.1. Preliminary considerations

20. Article 5.1.a) of the GDPR states that the processing of personal data must be carried out in a "lawful, fair, and transparent" manner.

21. Article 6 of the GDPR sets out, in its first paragraph, six distinct bases of lawfulness. It particularly considers that processing is lawful if it "is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller." This is the basis of lawfulness relied upon by the defendant regarding the processing at issue in this case.

22. The invocation of this basis of lawfulness presupposes the fulfillment of the following two conditions:

- The controller must, in accordance with Article 6.3.b) of the GDPR read in light of recitals 41 and 45

of the same Regulation, be vested with the performance of a task carried out in the public interest or in the exercise of official authority under a legal basis, whether under European Union law or the law of the Member State;

- The purposes of processing must be necessary for the performance of the public interest task or the exercise of official authority.

23. Furthermore, it follows from the case law of the Court of Justice of the European Union that Article 6.3 of the GDPR, read in conjunction with recital 45 thereof, requires that "the

4 It is the Chamber that emphasizes this.

5 It is the Chamber that emphasizes this.

6 Article 6.3 of the GDPR: "The basis for processing referred to in paragraph 1, points c) and e), is defined by:

a) the law of the Union; or

b) the law of the Member State to which the controller is subject.

The purposes of processing are defined in this legal basis or, in the case of processing referred to in paragraph 1, point e), are necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of processing by the controller.

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The basis for the processing referred to in Article 6, paragraph 1, under e), of this regulation is defined by Union law or by the law of the Member State to which the data controller is subject. Furthermore, Union law or the law of the Member States must pursue a public interest objective and be proportionate to the legitimate aim pursued. The Contentious Chamber specifies that the processing of personal data based on Article 6.1.e) of the GDPR must be governed by sufficiently clear and precise regulations, so that the processing is predictable for the individuals concerned. The requirement of predictability implies that certain essential elements of the processing in question must be enshrined in a formal legal norm as defined in Article 22 of the Constitution, including but not limited to the purpose of the processing.

24.

In regard to the necessity condition, the Court of Justice of the European Union (CJEU) specified in its judgment in *Huber* that "with regard to the objective of ensuring an equivalent level of protection in all Member States, the notion of necessity as it results from Article 7, under e) of Directive 95/46, which aims to precisely delineate one of the circumstances in which the processing of personal data is lawful, cannot have a variable content depending on the Member States. Consequently, it is an autonomous concept of Community law that must be interpreted in a manner that fully responds to the purpose of this directive as defined in Article 1, paragraph 1, of the latter."

25.

In the conclusions he submitted in this case, the Advocate General clarifies in this regard that "the concept of necessity has a long history in Community law and is well established as an integral part of the proportionality criterion. It means that the authority adopting a measure that infringes a fundamental right in order to achieve a justified objective must demonstrate that this measure is the least restrictive means of achieving that objective. Furthermore, if the processing of personal data may infringe the fundamental right to respect for private life, Article 8 of the European Convention on Human Rights and Fundamental Freedoms...

processing; the types of data subject to processing; the individuals concerned; the entities to which personal data may be communicated and the purposes for which they may be communicated; the limitation of purposes; the retention periods; and the processing operations and procedures, including measures to ensure lawful and fair processing, such as those provided for in other specific processing situations as outlined in Chapter IX. Union law or the law of the Member States pursues a public interest objective and is proportionate to the legitimate aim pursued."

7 CJEU, judgment *Norra Stockholm Bygg AB v. Per Nycander AB* of March 2, 2023, C-268/21, ECLI:EU:C:2023:145, paragraph 31.

8 See opinion No. 76/2024 of the Authorization and Advisory Service (formerly "Knowledge Center") of the DPA, accessible via <https://www.autoriteprotectiondonnees.be/publications/avis-n0-76-2024.pdf>.

9 Law, decree, or ordinance.

10 Member States provide that the processing of personal data may only be carried out if: (...) e) it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller or the third party to whom the data are communicated.

11 CJEU, December 16, 2008, judgment *Heinz Huber v. Federal Republic of Germany*, C-524/06, paragraph 52.

12 Conclusions of Advocate General Poiares Maduro presented on April 3, 2008, in the proceedings before the CJEU that led to the judgment cited in footnote 11 above (C-524/06).

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(ECHR) which guarantees respect for private and family life, also becomes relevant. As the Court stated in the judgment *Österreichischer Rundfunk e.a.*, if a national measure is incompatible with Article 8 of the ECHR, that measure cannot satisfy the requirement of Article 7, under e), of the directive. Article 8, paragraph 2, of the ECHR provides that an interference with private life may be justified if it pursues one of the objectives listed therein and "in a democratic society, is necessary" for one of those objectives. The European Court of Human Rights has ruled that the notion of "necessity" implies that a "pressing social need" is at stake.

26.

The Article 29 Working Party, referring to the case law of the European Court of Human Rights, concludes that the adjective "necessary" does not carry the same flexibility as terms such as "permissible," "normal," "useful," "reasonable," or "opportune."

27.

Article 10 of the GDPR further provides that "The processing of personal data relating to criminal convictions and offenses or related security measures based on Article 6, paragraph 1, may only be carried out under the control of a public authority, or if the processing is authorized by Union law or by the law of a Member State which provides for appropriate safeguards for the rights and freedoms of the data subjects. Any comprehensive register of criminal convictions may only be maintained under the control of a public authority."

II.1.2. Practical Application

28.

The defendant refers to the police mission conferred upon him under Articles 44bis, §§ 2 and 415, and 45, §§ 1 and 216 of the law of December 15, 1980 on access to the territory, residence,

13 Article 29 Working Party, Opinion 06/2014 of April 9, 2014 on the concept of legitimate interest pursued by the data controller within the meaning of Article 7 of Directive 95/46/EC, WP 217.

14 It is the Litigation Chamber that emphasizes in bold.

15 Article 44bis, §§ 2 and 4: "§ 2. The minister may terminate the residence of Union citizens and their family members who have acquired the right of permanent residence in accordance with Articles 42quinquies and 42sexies only for serious reasons of public order or national security.

[...]

§ 4. When the minister or his delegate considers taking a decision referred to in paragraphs 1, 2, or 3, he takes into account the duration of the stay of the Union citizen or his family member in the territory of the Kingdom, his age, health status, family and economic situation, social and cultural integration in the Kingdom, and the intensity of his ties with his country of origin."

16 Article 45, §§ 1 and 2: "§ 1. The reasons of public order, national security, and public health referred to in Articles 43 and 44bis cannot be invoked for economic purposes.

§ 2. The decisions referred to in Articles 43 and 44bis must respect the principle of proportionality and be based exclusively on the personal behavior of the concerned Union citizen or his family member. The existence of prior criminal convictions cannot alone justify such decisions. The behavior of the Union citizen or his family member must represent a real, current, and sufficiently serious threat to a fundamental interest of society. Justifications not directly related to the individual case concerned or based on general preventive reasons cannot be accepted.

For the purposes of establishing whether the Union citizen or his family member poses a danger to public order or national security, the minister or his delegate may, when issuing the registration certificate or residence card of a family member of a Union citizen and if deemed necessary, request the Member State of origin and,

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the establishment and removal of foreigners, and which calls for the safeguarding of public order and national security, a mission that also involves the processing of personal data, without this being precisely defined in these provisions.

29.

It further cites Article 74/8, § 1, paragraph 2 of the law of December 15, 1980, which provides for an obligation to exchange information between prison authorities and the Office of Foreigners regarding foreign nationals who are either accused or convicted and are in an irregular stay in Belgium.

30. The defendant adds that this obligation to exchange information has been specified in ministerial circular No. 1815bis. This circular notably defines the practical modalities by which the migration officer of the Office of Foreigners can access the file of the person concerned. It should be added that ministerial circular No. 1815bis does not distinguish between foreigners in regular stay and those in irregular stay, thus extending the scope of Article 74/8, § 1, paragraph 2 of the law of December 15, 1980.

31.

The Contentious Chamber first notes that Articles 44bis, §§ 2 and 4, and 45, §§ 1 and 2 of the law of December 15, 1980 must be read in light of Article 74/8, § 1, paragraph 2 of the same law. Indeed, upon reading these provisions, it appears that Article 74/8, § 1, paragraph 2 of the law of December 15, 1980 is more specific than Articles 44bis, §§ 2 and 4, and 45, §§ 1 and 2 of the law of December 15, 1980, as it provides for a duty to exchange information between prison authorities and the Office of Foreigners, while Articles 44bis, §§ 2 and 4 and 45, §§ 1 and 2 of the law of December 15, 1980 are limited, regarding the processing of personal data, to general considerations. It should be noted that Article 74/8, § 1, paragraph 2 of the law of December 15, 1980 only targets foreign accused or convicted persons in irregular stay. However, at the time of the disputed processing, the complainant was in regular stay, so he did not fall within the scope of this provision.

32.

Therefore, the question that arises in this case concerns the articulation between Articles 44bis, §§ 2 and 4, and 45, §§ 1 and 2 of the law of December 15, 1980, and Article 74/8, § 1, paragraph 2 of the same law, and, more specifically, whether Article 74/8, § 1, paragraph 2 provides for the possibility of informing other Member States about the criminal records of the person concerned.

This consultation cannot have a systematic character.

17 Article 74/8, § 1, paragraph 2 “§ 1 [...]”

If an accused or convicted person is a foreigner in irregular stay, the minister responsible for access to territory, stay, establishment, and removal of foreigners or his delegate is informed by the director of the prison establishment of his confinement in the prison establishment, and this, from the beginning of his detention. Upon receipt of this information, the minister or his delegate proceeds to the identification by the national authorities of his country of origin. The minister or his delegate is authorized to request any Belgian authority to produce all documents and information useful for establishing the identification. As soon as the identification procedure is completed, the minister or his delegate immediately transmits a document to the director of the prison establishment certifying that the person concerned has been identified, in accordance with Article 1, 14°.”

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2 must be interpreted as constituting an obstacle to the fact that the Office of Foreigners may rely on Articles 44bis, §§ 2 and 4, and 45, §§ 1 and 2 to access the detention file of foreign defendants or convicts in regular residence, such as the complainant at the time of the disputed facts. The Contentious Chamber considers that a negative response is indeed the result of the wording of Article 74/8, § 1, paragraph 2.

33. The Contentious Chamber understands from the combined reading of the legal provisions that by providing for the obligation of information exchange between the penitentiary authorities and the Office

of Foreigners specifically through Article 74/8, § 1, paragraph 2 of the law of December 15, 1980, whose scope is explicitly limited to foreign defendants or convicts in irregular residence, the Belgian legislator considers conversely that the processing of personal data relating to the detention file of foreign defendants or convicts in regular residence cannot be based on Articles 44bis, §§ 2 and 4, and 45, §§ 1 and 2, of the law of December 15, 1980.

34. These latter provisions indeed state that the Office of Foreigners can adopt a decision to end residence, that this decision must be based exclusively on the behavior of the person concerned, and that the Office of Foreigners cannot rely solely on the existence of prior criminal convictions. If the Office of Foreigners is therefore required to process personal data in order to fulfill its public interest mission, it cannot be inferred from a general norm that it can have the same legal effects as those provided by a more specific norm, and this with respect to persons who are not even covered by the latter (*generalia specialibus non derogant*). If the legislator's intention was for the obligation of information exchange between the penitentiary authorities and the Office of Foreigners to extend not only to foreign defendants or convicts in irregular residence but also to foreign defendants or convicts in regular residence, then it would not have made this distinction in Article 74/8, § 1, paragraph 2 of the law of December 15, 1980. If the latter provides that such an obligation of information exchange can only concern foreign defendants or convicts in irregular residence, then it must be understood from a *contrario* reading of this provision that the legislator did not intend for this obligation of information exchange to also concern foreign defendants or convicts in regular residence. Thus, Articles 44bis, §§ 2 and 4, and 45, §§ 1 and 2 of the law of December 15, 1980 cannot be recognized as valid grounds within the meaning of Article 6.1.e) of the GDPR for the processing in question.

35. Finally, regarding Ministerial Circular No. 1815bis, it should first be noted that ministerial circulars occupy the lowest position within the hierarchy of norms. Moreover, ministerial circulars are not intended to modify legal rules and are not binding. Generally, these texts state "simple Decision on the merits 55/2025 — 10/20

rules of conduct, information or explanations regarding, in particular, the existing legislation or regulation, even when it proposes a non-binding interpretation thereof.

18.

36. However, this has little consequence in the present case.

37.

Indeed, as recalled in point 23, when the processing of personal data is based on Article 6.1.e) of the GDPR, such processing must rely on a formal law understood in the sense of Article 22 of the Constitution, and must include certain essential elements of said processing, including at least the purpose pursued. Non-essential elements of the processing may be included in a royal decree provided that the legislator has specifically delegated this task to the executive power. In this regard, it is useful to mention that it follows from the case law of the Constitutional Court that the Constitution does not actually prohibit the legislator from delegating to the executive power the task of organizing certain principles established by law. However, this delegation can only be limited to the implementation of elements arising from the law, and cannot therefore fill in its ambiguities.

19.

38. In the present case, Ministerial Circular No. 1815bis is not a formal law; it cannot be considered a regulatory act. It is also noted that it has not been published and can hardly be invoked against litigants.

39. Consequently, it cannot be recognized that a public interest mission involving the consultation of the detention file of foreigners in a regular residence situation could arise from Ministerial Circular No. 1815bis in a manner that would be compliant with Article 22 of the Constitution and Article 6.1.e) of the GDPR read in light of Articles 7 and 8 of the Charter of Fundamental Rights of the European Union.

40. In conclusion, the Contentious Chamber declares that by consulting the penitentiary file (or detention file) of the complainant in its penitentiary establishment without a valid legal basis, the defendant has failed to respect Articles 5.1.a), 6.1, and 10 of the GDPR.

II.1.3. The use of the "Sidis Suite" database

41.

The detention files of foreign nationals are available both in physical form at the registry of the prison

where the person concerned is detained, and also in digitized form within the "Sidis Suite" database. In the present case, the defendant consulted the complainant's detention file only in physical form, and it is on the basis of this premise that the Contentious Chamber conducted the legal examination under point II.1.2. of this decision. During the hearing, the defendant stated that it is the practice of the Office of Foreigners to consult the detention file of concerned individuals in both its physical and digitized versions. Furthermore, the defendant specified that the file accessible through Sidis Suite is similar to that accessible through the prison registry, except that in this database it is not possible to access information regarding the disciplinary history of the person concerned. Consequently, it appears important to the Contentious Chamber to also address some observations regarding the consultation of the detention file through Sidis Suite.

42.

Article 3, paragraph 1 of the law of May 5, 2019 defines Sidis Suite as "a computerized database [...] in which the data necessary for the proper exercise of the legal missions of the penitentiary administration [...] is processed."

43. Article 7, § 1, 7° of the law of May 5, 2019 grants a right to read the data processed in Sidis Suite to the Office of Foreigners. The second paragraph of the same article provides that "The King shall determine, after consulting the competent control authority, the scope and modalities of this right to read and specifies by authority, body, or service for what specific purposes the data may be used."

44. The royal decree intended to organize the scope and modalities of this right to read for the Office of Foreigners has still not been adopted to date. A draft of this royal decree has not yet been submitted for the opinion of the Data Protection Authority (APD).

45. Furthermore, the Contentious Chamber notes that although Sidis Suite processes and collects a whole series of personal data, including the detention files of accused or convicted foreigners, without distinction regarding the regularity of their stay, the law of May 5, 2019 does not precisely outline the extent of the right to read these same data for the public authorities that are granted this right.

46. Indeed, Article 7, § 1 of the law of May 5, 2019 indicates that public authorities benefiting from a right to read must be able to access the data necessary for the fulfillment of their legal missions. Moreover, the legislator has delegated to the King the task of delineating the scope of this right to read. 20 Art. 7, § 1: "The following authorities, bodies, or services are granted a right to read the data processed in Sidis Suite, which they need for the fulfillment of their legal missions:

[...]

7° the Office of Foreigners;"

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47.

Royal decrees, being at a lower level than laws in the hierarchy of norms, cannot contradict the will of the legislator. In this regard, the Litigation Chamber refers to point 37 of this decision.

48. The Litigation Chamber has determined that it was not the intention of the legislator for the Immigration Office to consult the criminal record of foreign defendants or convicted foreigners in regular residence. The Litigation Chamber refers in this regard to points 28 to 40 of this decision.

49. Any processing of personal data allegedly carried out on the basis of Article 6.1.e), but which does not rely on a legal basis or relies on an inappropriate legal basis (see in this sense points 20 to 26 of this decision), is in fact unlawful within the meaning of the GDPR.

II.2. Regarding the alleged breach of Articles 5.1.a), 12.1, and 14 of the GDPR

50. Article 5.1.a) of the GDPR states that the processing of personal data must be carried out in a "lawful, fair, and transparent" manner.

51. Article 12.1 of the GDPR provides that "The data controller shall take appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when providing information specifically addressed to a child. [...]".

52. Article 14 of the GDPR stipulates that when the data controller collects personal data of the data subject indirectly, they must inform the data subject within one month of obtaining such data, unless there has been communication with the data subject based on the collected data or there has been

communication of the same data to another recipient, in which case the one-month period established by Article 14.3.a) may be reduced. The information to be provided to the data subject is listed in points a) to f) of Article 14.1 of the GDPR, and,

21 Law, decree, or ordinance.

22 It is the Chamber that emphasizes this.

23 Art. 14.1 of the GDPR: "§1 [...]"

a) the identity and contact details of the data controller and, where applicable, of the representative of the data controller;

b) where applicable, the contact details of the data protection officer;

c) the purposes of the processing for which the personal data are intended as well as the legal basis for the processing;

d) the categories of personal data concerned;

e) where applicable, the recipients or categories of recipients of the personal data;

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if they are necessary to ensure fair and transparent processing, at points a) to g) of Article 14.224 of the same Regulation.

53. The right to information constitutes, along with the right of access, two sides of the same principle: the principle of transparency. While the right of access represents the active aspect, requiring action from the data subject, the right to information represents the passive aspect, as the relevant information that must be communicated to the data subject does not require any action on their part; the data controller has a positive obligation to act in this regard.

54. The Dispute Chamber adds that transparency is a fundamental principle of the right to the protection of personal data. It allows data subjects not only to be aware of the processing of their personal data but also, thereby, to exercise control over it—this may lead to certain actions being taken by the data subject if necessary.

55. This is concretized, for example, in Article 21.1 of the GDPR, which states that "The data subject has the right to object at any time, on grounds relating to his or her particular situation, to processing of personal data concerning him or her based on Article 6(1)(e) or (f), including profiling based on those provisions."²⁵ To ensure the effectiveness of the right to object, the data subject must necessarily be informed of the very existence of the processing of their personal data and the information related to it.

56. It is precisely for this reason that the European legislator has, in the GDPR, sharpened the obligation to inform data subjects of the processing of their

f) where applicable, the fact that the data controller intends to carry out a transfer of personal data to a recipient in a third country or an international organization, and the existence or absence of an adequacy decision issued by the Commission or, in the case of transfers referred to in Articles 46 or 47, or Article 49(1), second subparagraph, the reference to appropriate or suitable safeguards and the means of obtaining a copy or the location where they have been made available;

24 Art. 14.2 of the GDPR: "§2 [...]"

a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;

b) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the data controller or by a third party;

c) the existence of the right to request from the data controller access to personal data, the rectification or erasure of such data, or a restriction of processing concerning the data subject, as well as the right to object to processing and the right to data portability;

d) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;

e) the right to lodge a complaint with a supervisory authority;

f) the source from which the personal data originate and, where applicable, a mention indicating whether they come from publicly accessible sources;

g) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4),

and, at least in such cases, useful information regarding the underlying logic, as well as the significance and the envisaged consequences of such processing for the data subject."

25 It is the Chamber that bolds the text.

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personal data by attributing qualities that were not present under

Directive 95/46/EC of the European Parliament and of the Council, of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data, such as conciseness, transparency, understandability, and easy accessibility²⁶.

57.

Article 62, § 1 of the law of December 15, 1980 provides that:

"§1 When it is envisaged to terminate the stay or to revoke the stay of a foreigner who is authorized or admitted to stay for more than three months in the territory of the Kingdom or who has the right to stay there for more than three months, the person concerned shall be informed in writing and given the opportunity to present relevant elements that may prevent or influence the decision. The person concerned has a period of fifteen days, from the receipt of the written notice referred to in paragraph 1, to submit the relevant elements in writing. This period may be shortened or extended if deemed useful or necessary for the decision-making, taking into account the specific circumstances of the case.

The obligation provided in paragraph 1 does not apply in the following cases:

- 1° if reasons concerning the security of the State oppose it;
- 2° if the specific circumstances of the case oppose or prevent it, due to their nature or severity;
- 3° the person concerned is unreachable."

58. In the present case, the defendant claims to have duly collected the personal data of the complainant from the latter and to have correctly informed the latter in this regard through the "Right to be heard" form. As stated in the above point, Article 62, § 1 of the law of December 15, 1980 indeed provides that the foreigner regarding whom it is envisaged to terminate or revoke the stay has a certain period to present the elements he deems relevant in writing.

59. However, this is entirely unrelated to the consultation of the prison file, which constitutes an indirect collection of the personal data of the complainant and on which the parties were invited to conclude. The fact that the defendant has carried out a

26 Article 12.1 of the GDPR: "1. The data controller shall take appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent, understandable, and easily accessible form, using clear and simple language, particularly for any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When the data subject requests it, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means.[...]"

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The direct collection of data from the complainant under Article 62, § 1 of the law of December 15, 1980 is not at issue in this case.

60. Regarding the consultation of the prison file, the defendant argues that it "aims to ensure respect for the right to be heard concerning the person concerned and for their identification"²⁷ without establishing how this would satisfy the obligations incumbent upon it under Articles 5.1.a), 12.1, and 14

of the GDPR.

61.

Furthermore, the defendant states in its conclusions that the person concerned is informed of the processing and its purposes through the visit of the accompanying migration officer. The Contentious Chamber recalls that Article 12.1 of the GDPR provides that the information referred to, in particular, in Article 14 of the GDPR must be provided in writing, or orally when the person concerned has specifically requested it. However, the defendant provides no evidence for either.

62.

Finally, the defendant noted during the hearing that it had provided an information sheet to the complainant, which includes information regarding the various procedures that may be implemented following a criminal conviction. The defendant submitted a copy of this information sheet to the Contentious Chamber in addition to its response conclusions but specifies that it is unable to demonstrate that it actually transmitted it to the complainant, given the lack of formalization of this delivery in current practice. This is also not relevant in light of the facts and the alleged violation of Articles 5.1.a), 12.1, and 14 of the GDPR on which the parties were invited to conclude. The fact that the defendant may or may not have validly informed the complainant of the procedures that could be implemented following the complainant's criminal conviction is not at issue in this case – which, obviously, does not fall within the jurisdiction of the Contentious Chamber.

63. The Contentious Chamber considers that in light of the elements presented above, the defendant has failed to comply with Articles 5.1.a), 12.1, and 14 of the GDPR in that it has not demonstrated that it communicated the relevant information regarding the indirect collection of the complainant's personal data, namely those related to the consultation of the complainant's prison file. The Contentious Chamber also takes into account the fact that in June 2020, the defendant's DPO had recommended that the latter establish documentation to allow individuals in a situation comparable to that of the complainant to contact the DPO and exercise the rights they have under the GDPR, but that despite this recommendation, it was not followed.

27 Defendant's response conclusions, p. 13.

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64. The Contentious Chamber further emphasizes that the GDPR came into effect on May 24, 2016. It was therefore the responsibility of public authorities to implement all necessary technical and organizational measures to comply with all provisions of the GDPR in the performance of the public interest missions regularly assigned to them. They cannot afford to neglect examining and exercising their practices in light of the GDPR, and, more generally, of the fundamental right that constitutes the right to the protection of personal data. Public authorities have a duty of exemplary conduct.

II.3. Regarding the alleged breach of Articles 12.3 and 15.1 of the GDPR

65. It appears from the case documents that the complainant exercised their right of access on August 18, 2023, and that the defendant did not respond at least until the time of the filing of the complaint. In its conclusions, the defendant stated that it had no observations to make in this regard.

66. The right of access has three components. First, under Article 15.1 of the GDPR, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. Second, when personal data is being processed, the data subject has the right to access the said personal data as well as a series of information listed in Article 15.1 a) – h). Third, under Article 15.3 of the GDPR, the data subject also has the right to obtain a copy of the personal data undergoing processing.

67. Article 12 of the GDPR concerning the modalities for exercising their rights by data subjects provides in its third paragraph that the data controller shall provide information on the measures taken in response to the request made by the data subject, and this no later than one month from the request, unless a reasoned request for an extension is made.

68. The Contentious Chamber recalls that the right of access constitutes a requirement of the right to the protection of personal data, as it serves as "the gateway" to the exercise of the other rights conferred by the GDPR to the data subject.

69. In the present case, the violation of Articles 12.3 and 15 of the GDPR is established, given that, as

described in point 65 of this decision, the defendant did not respond to the complainant's access request within the timeframe stipulated by Article 12.3 of the GDPR.

28 The complaint was filed on October 3, 2023.

29 CJEU, judgment of January 12, 2023, Österreichische Post AG, C-154/12, paragraphs 37 and 38; CJEU, judgment of December 20, 2017, Nowak, C-434/16, paragraph 57; CJEU, judgment of July 17, 2014, YS et al., C-141/12 and C-372/12, paragraph 44; CJEU, judgment of May 7, 2009, Rijkeboer, paragraph 52.

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70. In conclusion, the Contentious Chamber finds that the defendant has failed to comply with Articles 12.3 and 15 of the GDPR.

71. Furthermore, the Contentious Chamber considers it important to highlight the circumstances of the present case. Indeed, it should be noted that the complainant submitted their request to the defendant's DPO. During the hearing, the DPO argued that the complainant's request was only brought to their attention on March 21, 2024, that is to say, when the defendant was informed of the existence of the complaint. The DPO clarified during the hearing that the complainant's request was indeed received by the defendant, but that it was not forwarded to them due to an internal error.

III. Sanctions and Corrective Measures

72. Under Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the recipients of the data;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the public prosecutor of the Brussels Prosecutor's Office, which informs them of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

73. In summary, the defendant has failed: to comply with Articles 5.1.a), 6.1, and 10 of the GDPR (violation 1); to comply with Articles 5.1.a), 12.1, and 14 of the GDPR (violation 2); and to comply with Articles 12.3 and 15 of the GDPR (violation 3).

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74.

Regarding violation 1, the Contentious Chamber finds the unlawfulness of the processing in question, namely the consultation of the prison record of a foreign national who is legally residing in the territory of the Kingdom of Belgium. The law does not provide any basis that would confer a lawful foundation for the processing in question. Therefore, the Contentious Chamber issues a reprimand to the defendant.

75.

Regarding violation 2, the Contentious Chamber also issues a reprimand to the defendant for the violation of Articles 5.1.a), 12, and 14 of the GDPR and orders them to comply with the GDPR, which means, at a minimum:

- a. to publish ministerial circular no. 1815bis and to ensure that information about its content is provided

to the concerned parties;

b. to take technical and organizational measures in order to:

(i) on the one hand, prevent the possibility that a migration escort could, as in the present case, consult and collect more data than they can at the prison registry, which involves the adoption and distribution to the agents of the Office of Foreigners of documents aimed at delineating the data that migration escorts are specifically entitled to consult and collect in this context; and

(ii) on the other hand, ensure that, as required by Articles 5.1.a), 12, and 14 of the GDPR, foreign defendants or convicts are informed of the indirect collection of their data that occurs when the Office of Foreigners consults their prison records.

c. that the DPO is systematically involved in the drafting of the aforementioned documents.

76.

The elements presented above constitute only a minimum of measures that the defendant must adopt and may be supplemented by additional measures.

77.

The defendant has a period of three months to comply. The period begins from the day they receive the registered letter notifying them of this decision or the day of the expiration of the period during which the defendant is, if applicable, required to collect said registered letter at the post office.

78.

Regarding violation 3, the Contentious Chamber issues a reprimand to the defendant for the violation of Articles 12.3 and 15 of the GDPR.

IV. Publication of the decision

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filed with the registry of the Commercial Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(Sé). Hielke HIJMANS

President of the Contentious Chamber

2° the name, first name, domicile of the applicant, as well as, if applicable, their qualifications and national register number or business number;

3° the name, first name, domicile and, if applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

31 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed with the registry.